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Governor Signs New Law Addressing Student Mental Health Crisis in California

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Amid continued concerns about the impact of the COVID-19 pandemic on youth mental health, Gov. Gavin Newsom signed into law that enables educators in California to better identify and address student mental health concerns.

AB 309 — jointly authored by Assemblymember Jesse Gabriel (D-Woodland Hills) with Assemblymember Patrick O'Donnell (D-Long Beach), Chair of the Assembly Education Committee — will require the California Department of Education to create a model mental health referral protocol for use by schools across California.

The protocols are to provide guidance to help educators better identify students with mental health needs and quickly and efficiently connect them with appropriate services. The bill is supported by a broad coalition of leading advocacy organizations, including the California State Parent Teacher Association (PTA), the California Teachers Association, and the American Academy of Pediatrics.

"Like parents across California, I'm deeply concerned about the impact the pandemic has had on our kids' mental health and emotional wellbeing," Gabriel said.

"California was facing a student mental health crisis prior to the pandemic, and the current situation is even more troubling. Our legislation will equip teachers with better tools and resources so that they can help our students navigate these extremely challenging times, particularly as we continue reopening our schools and bringing students back into the classroom after months of distance learning."

Recent data suggests that the COVID-19 pandemic has greatly exacerbated mental health issues among school-aged youth. Prior to the COVID-19 pandemic, one in five children exhibited signs of a mental health disorder, with California adolescents reporting even higher rates of depressive symptoms than the national average.

Data from the Centers for Disease Control (CDC) shows the proportion of emergency room visits related to mental health crises has increased dramatically for young children and adolescents since the start of the pandemic. Another recent CDC report found that 25 percent of respondents between the ages of 18-24 had contemplated suicide in the previous 30 days.

The C.S. Mott Children's Hospital located in Ann Arbor, Mich., found that 46 percent of parents reported that their child has shown signs of a new or worsening mental health condition since the start of the pandemic.

The mental health of many children in California is already at a crisis point, legislators said.

"The stress of the COVID-19 pandemic has only compounded this problem," said Assemblymember Patrick O'Donnell, chair of the Assembly Education Committee. "We are seeing increasing rates of anxiety, depression, and suicide ideation among our young people.

"In addition to the record funding we included in the current state budget to address student mental health, AB 309 will provide schools with model mental health referral protocols that will enable our teachers and other school staff to connect students with the help they need."

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